PROPOSED DRAFT CONVENTION ON THE SETTLEMENT OF SPACE LAW DISPUTES

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In Space Law, as in other fields of international law, the substantive rules of the law are of primary importance. They give the legal framework of the rights and duties of those participating in space activities. But also, as in other fields of the law, any rights and duties expressed in substantive law are only worth as much as the degree to which they stand the test of enforceability, if other members of the legal regime are not ready to accept without doubt or without opposition the rights of members of the regime. It is commonly acknowledged that enforceability is a weak point in most fields of international law. In most fields of international law we have only limited means of enforceability and this is also the case for existing space law.

1. Rules on Dispute Settlement in Existing Space Law Instruments

If we look at the main instrument of present space law, the Outer Space Treaty,[1] we find some relevant wording asking for cooperation, mutual assistance and consultations, but no rules on actual dispute settlement.[2]

The Liability Convention provides some machinery referring first to diplomatic negotiations in case of a dispute and, if no settlement of a claim is arrived at in such a way, to a Claims Commission at the request of either party.[3] However, Article 19, paragraph 2 provides that the decision of the Commission shall be final and binding only if the parties have so agreed. Otherwise, the decision is only a recommendation "which the parties shall consider in good faith."

None of the other general space law instruments provides for dispute settlement. On the other hand, more sophisticated and also sometimes binding dispute settlement machineries are provided for in more specific space law instruments. The INTELSAT Agreement provides for arbitration and expressly states that the decision of the arbitral tribunal shall be binding on all the disputants and shall be carried out by them in good faith.[4] Similar provisions can be found in the INMARSAT Agreement,[5] the ESA

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[1]The Treaty on Principles Governing the Activities of States in the Exploration and Use of Outer Space, Including the Moon and Other Celestial Bodies, was signed on January 27, 1967, and entered into force October 10, 1967, [1967] 18 U.S.T. 2410, T.I.A.S. No. 610 U.N.T.S. 205.

[2]*Id.* at Arts. 9 and 13.

[3]Convention on International Liability for Damage Caused by Space Objects, March 29, 1972, [1973] 24 U.S.T. 2389, T.I.A.S. No. 7762 (effective Oct. 9, 1973), Arts. 9 *ff.*

[4]Art. 13 of Annex C to the Agreement of the International Telecommunications Satellite Organization, Communications Satellite System (agreement, with annexes, done at Washington August 20, 1971, and entered into force February 12, 1973) 23 U.S.T. 3813, T.I.A.S. 7532.

[5]The Operating Agreement on the International Maritime Satellite Organization was done at London September 3, 1976, and entered into for the United States July 16, 1979, T.I.A.S. 9605.

Convention[6] and similar instruments of multilateral or bilateral character dealing with very specific and concrete space activities and the participation of particular states therein.[7]

2. Initiatives for Further Development of Relevant Space Law

During the exploratory stage of space activities, differing opinions in space law meant only a dispute on principles, and meant relatively little as far as collision of practical interests and of concrete application of such rules were concerned. Now, however, with the growing use of space and with the increasing number of states active or at least interested in space activities of some kind, conflicting views and uses of outer space will be incompatible, not only in theory but also in practice. Under such circumstances more and more often a situation will arise where disputes on various aspects of space law can no longer be left open, allowing each state to persist on its own view and to act accordingly. Space law, therefore, is and will continue to be facing a demand to develop techniques for the settlement of disputes. It is on this background that a number of initiatives for the further development of relevant space law have been undertaken in recent years and are still continuing.

The first major initiative of this kind was the Munich Colloquium on "Settlement of Space Law Disputes - The present State of the Law and Perspectives of further Development" organized in 1979 by the Institute of Air and Space Law of Cologne University in cooperation with the Space Law Committee of the International Law Association, the International Institute of Space Law and the German Society for Aeronautics and Astronautics.[8] Participants from all over the world contributed their views and experience. In short, and not without a certain simplification, the results could be characterized by the following conclusions:

1. If we want progress to be achieved in the development of procedure for the peaceful settlement of disputes in space law, instead of enthusiastic recommendations, a pragmatic endeavour to choose the settlement method best fit and most acceptable to states for a given type of case or a specific area of space law would usually seem to be the wise approach. A number of specific criteria might be taken into account in the deciding process.
2. The method finally required for at least certain, practically relevant areas of space law, in order to assure peaceful cooperation or at least coexistance of the international community in space activities, will be compulsory third-party settlement.
3. States can only be expected to be willing to accept this latter method for those areas of space law where a reasonable certainty as to the applicable rules exists, but not for highly controversial areas.
4. A greater number of states may be found ready to accept compulsory third-party settlement if they are given a choice between adjudication and arbitration.

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[6]The European Space Agency was established in Paris, on May 30, 1975, by the Convention for the Establishment of a European Space Agency. *See* European Space Agency Annual Report (1976), Annex X.

[7]*See Relevant Materials and Texts* in SETTLEMENT OF SPACE LAW DISPUTES - THE PRESENT STATE OF THE LAW AND PERSPECTIVES OF FURTHER DEVELOPMENT 206-402 (K. H. Böckstiegel ed. 1980) (Proceedings of an International Colloquium, Munich, September 13 & 14, 1979, organized by the Institute of Air and Space Law, University of Cologne in cooperation with the Space Law Committee of the International Law Association).

[8]*See generally* SETTLEMENT OF SPACE LAW DISPUTES, *supra* note 7.

5. Where such a combined system is considered not fit or too complicated for a limited area of space law, a settlement by the more flexible method of arbitration will normally be more effective and more easily acceptable to states than the jurisdiction of a permanent international court.

6. Space lawyers have the responsibility to elaborate further criteria and alternative solutions in this field which states may then draw upon.

7. Most probably, if at all, progress will be achieved in state practice, conceivably in limited areas of space law, especially in the law of space communications and other such fields, where the functioning of the system is in the interest of all states concerned, and depends on disputes being settled without delay.[9]

Another initiative was the round table on "Settlement of Space Law Disputes" by the Council of Advanced International Studies in Cordoba, Argentina in which this author participated.[10]

At the governmental level a major initiative relevant in this field is the Study on the Applications of establishing an International Satellite Monitoring Agency (ISMA).[11] No matter how one judges in principle or in detail the proposal for an ISMA, it is interesting to note that the report contains a detailed section on "Settlement of Disputes Within an ISMA" and envisages the four following possibilities regarding the nature and composition of a dispute settlement organ of an ISMA: the establishment of a permanent arbitral body, an ad-hoc arbitral body, an executive organ of ISMA acting in an adjudicatory capacity and a panel of arbitrators nominated by member states from which parties select the arbitrators for each dispute.[12]

In November 1982, a workshop organized by the Hague Academy of International Law and the United Nations University dealt in the Hague with "The Settlement of Disputes on the New Natural Resources." Under several headings in that workshop, papers were presented and discussions held on conflict resolution in outer space. Major presentations in that respect came from Isabella Diederiks-Verschoor, Stephen Gorove, Lubos Perek, Nandasiri Jasentuliyana, and Delbert Smith.[13]

Another symposium in the Hague, this time organized by the International Institute of Space Law and the United Nations University in March 1984, dealt with "Conditions Essential for Maintaining Outer Space for Peaceful Uses." Though the agenda and the participants from all over the world were mainly occupied with the substantive and most fundamental question of how military activities in outer space can be reduced or banned, several papers also dealt with the settlement of disputes in that respect. Additionally, this author was asked to present a specific paper on a proposed Draft Convention on the Settlement of Space Law Disputes also applicable in this field of space activities.[14]

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[9] *Id.*

[10] The proceedings were published by the President of the Council. COUNCIL OF ADVANCED INTERNATIONAL STUDIES, SETTLEMENT OF SPACE LAW DISPUTES (A. A. Cocca ed. 1981).

[11] See the report of the Secretary General, U.N. Doc. A/AC.206/14 (August 6, 1981).

[12] *Id.* at § 436 *ff.*

[13] THE SETTLEMENT OF DISPUTES ON THE NEW NATURAL RESOURCES (1983) (Proceedings of an international workshop, the Hague, November 1982, organized by the Hague Academy of International Law and the United Nations University).

[14] The proceedings of this Hague colloquium will be published in the near future.

The last initiative to be mentioned here started in 1978 and is still continuing. The 1978 Manila conference of the International Law Association recommended that the problem of the settlement of space law disputes be studied by the Space Law Committee in order to present a report to the next ILA conference.[15] This started a discussion both in the ILA Space Law Committee and in the International Institute of Space Law, on future possibilities for providing procedures on the peaceful settlement of space law disputes. On the basis of the aforementioned preparatory discussions and research efforts, the Montreal 1982 Conference of the International Law Association passed a resolution recommending that the Space Law Committee start the formulation of a Draft Convention on the Settlement of Space Law Disputes incorporating the following basic principles:

> "The 60th Conference of the International Law Association held in Montreal 29th August - 4th September, 1982,:–
> Noting with approval the report concerning the Settlement of Space Law Disputes by the Rapporteur of the Space Law Committee based on answers from Committee Members to a questionnaire;
> Recommends that the Committee now start the formulation of a Draft Convention on the Settlement of Space Law Disputes on the basis of the report, of the discussion held during the Montreal Conference, incorporating the following Basic Principles:
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> 1. The Convention should provide States with a choice for its application to:
> (a) all Space Law disputes with other States parties;
> (b) application to specific areas of Space Law as may be dealt with in specific bilateral or multilateral treaties;
> (c) certain categories of disputes or certain sections of the Convention, subject to such exceptions that the State may wish to claim.
> 2. The Convention should in one section provide for non-binding settlement methods including recommendatory awards, but should in another section provide for binding methods of settlement upon application by one of the parties, if the other party does not agree to the conclusions of such non-binding methods.
> 3. The Convention should provide States with a choice among different settlement methods which, for binding settlement, should include adjudication by the International Court of Justice as well as administered and ad-hoc arbitration.
> 4. The Convention should provide that States parties have to select one method for binding settlement within the choice given according to Principle 3.
> 5. The Convention should stress that States parties have an obligation to fulfil decisions of the tribunal chosen under Principle 4.
> 6. In the Convention or as an annex thereto a "disputes settlement clause" should be drafted which could serve as a model to be included into future bilateral or multilateral treaties on Space Law."[16]

As requested by the above resolution, this author submitted a first draft of such a Convention to members of the ILA Space Law Committee and to members of the

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[15] 7 J. SPACE L. 63, 63-64 (1979).

[16] 10 J. SPACE L. 256, 256-57 (1982).

International Institute of Space Law in the fall of 1983 for further discussion. A number of comments were received from prominent experts all over the world which, without exception, welcomed the draft in principle and considered it a sound basis for work on a final wording of such a Draft Convention. These comments were reproduced in the printed report for the 1984 Paris Conference of the International Law Association.[17] Furthermore the Draft Convention was discussed at the 1984 Paris Conference of the ILA. In a resolution this author was asked to prepare a final draft in consultation with members of the ILA Space Law Committee for possible adoption of the 1986 ILA Conference.

Before one reads the Draft Convention which is reproduced below, the following explanations might be useful. The sections of the Draft are listed at the beginning and need not be repeated here. The Draft follows as much as possible and as closely as possible the dispute settlement procedures of the Law of the Sea Convention of 1982/1983.[18] This had already been suggested in the preparatory discussions in view of the fact that the respective parts of the Law of the Sea Convention and its Annexes represent the most recent indication of what is acceptable in present day state practice and that they have not been subject to any controversy in the later stages of the Law of the Sea Conferences. Obviously, certain adaptations had to be made in wording as well as in substance in order to comply with the different scope of application, the above mentioned ILA resolution and to avoid unnecessary complications. Thus, the articles dealing with the International Sea Bed Authority, the Sea Bed Disputes Chamber and the Special Arbitration could be deleted. Furthermore, contrary to the International Tribunal for the Law of the Sea, the "International Tribunal for Space Law" is only provided for as an option of the High Contracting parties if they wish to establish such a tribunal at a later stage.[19] To a certain extent, Article 1 of the Draft Convention makes use of wordings found in the European Convention for the Peaceful Settlement of Disputes of April 29, 1957. As requested in the aforementioned ILA resolution, a model dispute settlement clause is submitted as an annex to the Draft Convention.

Convention on the Settlement of Space Law Disputes
(First Draft)

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[17]The Draft Convention was discussed at the Conference and was approved. The Rapporteur and the Committee were asked to present a finalized draft to the next ILA Conference in 1986 for eventual adoption of the Draft Convention.

[18]For text, *see Draft Convention on the Law of the Sea*, U.N. Doc. A/CONF.62/122, of Oct. 7, 1982.

[19]*See Id.*

Preamble

The High Contracting Parties

Recognizing the common interest of all mankind in furthering the exploration and use of outer space for peaceful purposes,
Recognizing that the pursuit of peace based upon justice is vital for the preservation of human society and civilization,
Resolved therefore to settle by peaceful means any disputes which may arise between them with regard to outer space, have agreed as follows:

Section I. Applicability of this Convention

Art. 1 Scope of disputes settled under this Convention

1. This Convention applies to all activities in outer space and all activities with effects in outer space, if such activities are carried out by High Contracting Parties (HCPs), by nationals of HCPs or from the territories of HCPs.

2. Any HCP, on depositing its instrument of ratification, may declare

   a) that it excludes from the applicability of this Convention space activities of a specific kind described in such declaration,

   b) that it limits the applicability of this Convention to certain space activities or to specific areas of space law as may be dealt with in specific bilateral or multilateral treaties described in such declaration,

   c) that it will not be bound by certain sections or articles of this Convention described in such declaration.

3. A HCP may only benefit from this Convention insofar as it is itself bound.

4. A HCP which is bound by only part of this Convention, or which has made reservations, may at any time, by a simple declaration, either extend the scope of its obligations or abandon all or part of its reservations.

5. This Convention shall not apply to disputes which the parties have agreed or may agree to submit to another procedure of peaceful settlement, if that agreement provides for a procedure entailing binding decisions.

Art. 2 Definitions

(This article is left open for definitions that should appear to be useful as the result of the discussion of the draft.)

Section II. Non-Binding Settlement Procedures

Art. 3 Obligation to exchange views

1. When a dispute arises between HCPs concerning a matter described in Art. 1, paragraph 1, the parties to the dispute shall proceed expeditiously to an exchange of views regarding its settlement by negotiation or other peaceful means.

2. The parties shall also proceed expeditiously to an exchange of views where a procedure for the settlement of such a dispute has been terminated without a settlement or where settlement has been reached and the circumstances require consultation regarding the manner of implementing the settlement.

Art. 4 Conciliation

1. A HCP which is a party to dispute concerning a matter described in Art. 1, paragraph 1, may invite the other party or parties to submit the dispute to conciliation in accordance with the procedure under section IV, or another conciliation procedure.

2. If the invitation is accepted and if the parties agree upon the conciliation procedure to be applied, any party may submit the dispute to that procedure.

3. If the invitation is not accepted or the parties do not agree upon the procedure, the conciliation proceedings shall be deemed to be terminated.

4. Unless the parties otherwise agree, when a dispute has been submitted to conciliation, the proceedings may be terminated only in accordance with the agreed conciliation procedure.

Section III. Binding Settlement Procedures

Art. 5 Application of procedure under this section

Any dispute concerning a matter described in Art. 1, paragraph 1, shall, where no settlement has been reached by recourse to section II, be submitted at the request of any party to the dispute to the court or tribunal having jurisdiction under this section.

Art. 6 Choice of procedure

1. When signing, ratifying or acceding to this Convention or at any time thereafter, a State shall be free to choose, by means of a written declaration, one or more of the following means for the settlement of disputes concerning the interpretation or application of this Convention:

(a) the International Tribunal for Space Law, if and when such a Tribunal has been established in accordance with section VI;

(b) the International Court of Justice;

(c) an arbitral tribunal constituted in accordance with section V.

2. A HCP, which is a party to a dispute not covered by a declaration in force, shall be deemed to have accepted arbitration in accordance with section V.

3. If the parties to a dispute have accepted the same procedure for the settlement of the dispute, it may be submitted only to that procedure, unless the parties otherwise agree.

4. If the parties to a dispute have not accepted the same procedure for the settlement of the dispute, it may be submitted only to arbitration in accordance with section V, unless the parties otherwise agree.

5. A declaration made under paragraph 1 shall remain in force until three months after notice of revocation has been deposited with the Secretary-General of the United Nations.

6. A new declaration, a notice of revocation or the expiry of a declaration does not in any way affect proceedings pending before a court or tribunal having jurisdiction under this article, unless the parties otherwise agree.

7. Declarations and notices referred to in this article shall be deposited with the Secretary-General of the United Nations, who shall transmit copies thereof to the State Parties.

Art. 7 Jurisdiction

1. A court or tribunal referred to in article 6 shall have jurisdiction over any dispute concerning a matter described in Art. 1, paragraph 1, which is submitted to it in accordance with this Convention.

2. A court or tribunal referred to in article 6 shall also have jurisdiction over any dispute concerning the interpretation or application of an international agreement related to the purpose of this Convention, which is submitted to it in accordance with the agreement.

3. In the event of a dispute as to whether a court or tribunal has jurisdiction, the matter shall be settled by decision of that court or tribunal.

Art. 8 Experts

In any dispute involving scientific or technical matters, a court or tribunal exercising jurisdiction under this section may, at the request of a party or proprio motu, select in consultation with the parties no fewer than two scientific or technical experts to sit with the court or tribunal but without the right to vote.

Art. 9 Provisional measures

1. If a dispute has been duly submitted to a court or tribunal which considers that prima facie it has jurisdiction, the court or tribunal may prescribe any provisional measures which it considered appropriate under the circumstances to preserve the respective rights of the parties to the dispute or to prevent serious harm to the space environment, pending the final decision.

2. Provisional measures may be modified or revoked as soon as the circumstances justifying them have changed or ceased to exist.

3. Provisional measures may be prescribed, modified or revoked under this article only at the request of a party to the disputes and after the parties have been given an opportunity to be heard.

4. The court or tribunal shall forthwith give notice to the parties to the dispute, and to such other HCP as it considers appropriate, or the prescription, modification or revocation of provisional measures.

5. Pending the constitution of an arbitral tribunal to which a dispute is being submitted, any court or tribunal agreed upon by the parties or, failing such agreement within two weeks from the date of the request for provisional measures, the International Tribunal for Space Law or, as long as this Tribunal has not been erected, the International Court of Justice, may prescribe, modify or revoke provisional measures in accordance with this article if it considers that prima facie the tribunal which is to be constituted would have jurisdiction and that the urgency of the situation so requires. Once constituted, the tribunal to which the dispute has been submitted may modify, revoke or affirm those provisional measures, acting in conformity with paragraphs 1 to 4.

6. The parties to the dispute shall comply promptly with any provisional measures prescribed under this article.

Art. 10 Access

1. All the dispute settlement procedures specified in this Convention shall be open to HCPs.

2. The dispute settlement procedures specified in this Convention shall be open to entities other than HCPs unless the matter is submitted to the International Court of Justice in accordance with article 6.

Art. 11 Applicable law

1. A court or tribunal having jurisdiction under this Convention shall apply this Convention and other rules of international law not incompatible with this Convention.

2. Paragraph 1 does not prejudice the power of the court or tribunal having jurisdiction under this section to decide a case ex aequo et bono, if the parties so agree.

Art. 12 Exhaustion of local remedies

Any dispute concerning a matter described in Art. 1, paragraph 1, may be submitted to the procedures provided for in this section only after local remedies have been exhausted where this is required by international law.

Art. 13 Finality and binding force of decisions

1. Any decision rendered by a court or tribunal having jurisdiction under this Convention shall be final and shall be complied with by all the parties to the dispute.

2. Any such decision shall have no binding force except between the parties and in respect of that particular dispute.

Section IV. Conciliation Procedure

Art. 14 Institution of proceedings

If the parties to a dispute have agreed, in accordance with article 4, to submit it to conciliation under this section, any such party may institute the proceedings by written notification addressed to the other party or parties to the dispute.

Art. 15 List of conciliators

A list of conciliators shall be drawn up and maintained by the Secretary-General of the United Nations. Every State Party shall be entitled to nominate four conciliators, each of whom shall be a person enjoying the highest reputation for fairness, competence and integrity. The names of the persons so nominated shall constitute the list. If at any time the conciliators nominated by a HCP in the list so constituted shall be fewer than four, that HCP shall be entitled to make further nominations as necessary. The name of a conciliator shall remain on the list until withdrawn by the HCP which made the nomination, provided that such conciliator shall continue to serve on any conciliation commission to which that conciliator has been appointed until the completion of the proceedings before that commission.

Art. 16 Constitution of conciliation commission

The conciliation commission shall, unless the parties otherwise agree, be constituted as follows:

a) Subject to subparagraph g), the conciliation commission shall consist of five members.

b) The party instituting the proceedings shall appoint two conciliators to be chosen preferably from the list referred to in article 15, one of whom may be its national, unless the parties otherwise agree. Such appointments shall be included in the notification referred to in article 14.

c) The other party to the dispute shall appoint two conciliators in the manner set forth in subparagraph b) within 21 days of receipt of the notification referred to in article 14. If the appointments are not made within that period, the party instituting the proceedings may, within one week of the expiration of that period, either terminate the proceedings by notification addressed to the other party or request of the Secretary-General of the United Nations to make the appointments in accordance with subparagraph e).

d) Within 30 days after all four conciliators have been appointed, they shall appoint a fifth conciliator chosen from the list referred to in article 15, who shall be chairman. If the appointment is not made within that period, either party may, within one week of the expiration of that period, request the Secretary-General of the United Nations to make the appointment in accordance with subparagraph e).

e) Within 30 days of the receipt of a request under subparagraph c) or d), the Secretary-General of the United Nations shall make the necessary appointments from the list referred to in article 15 in consultation with the parties to the dispute.

f) Any vacancy shall be filled in the manner prescribed for the initial appointment.

g) Two or more parties which determine by agreement that they are in the same interest shall appoint two conciliators jointly. Where two or more parties have separate interests or there is a disagreement as to whether they are of the same interest, they shall appoint conciliators separately.

h) In disputes involving more than two parties having separate interests, or where there is disagreement as to whether they are of the same interest, the parties shall apply subparagraph a) to f) insofar as possible.

Art. 17 Procedure

The conciliation commission shall, unless the parties otherwise agree, determine its own procedure. The commission may, with the consent of the parties to the disputes, invite any HCP to submit to it its views orally or in writing. Decisions of the commission regarding procedural matters, the report and recommendations shall be made by a majority vote of its members.

Art. 18 Amicable settlement

The commission may draw the attention of the parties to any measures which might facilitate an amicable settlement of the dispute.

Art. 19 Functions of the commission

The commission shall hear the parties, examine their claims and objections, and make proposals to the parties with a view to reaching an amicable settlement.

Art. 20 Report

1. The commission shall report within 12 months of its constitution. Its report shall record any agreement reached and, failing agreement, its conclusions on all questions of fact or law relevant to the matter in dispute and such recommendations as the commission may deem appropriate for an amicable settlement. The report shall be deposited with the Secretary-General of the United Nations and shall immediately be transmitted by him to the parties to the dispute.

2. The report of the commission, including its conclusions or recommendations, shall not be binding upon the parties.

Art. 21 Termination

The conciliation proceedings are terminated when a settlement has been reached, when the parties have accepted or one party has rejected the recommendations of the report by written notification addressed to the Secretary-General of the United Nations, or when a period of three months has expired from the date of transmission of the report to the parties.

Art. 22 Fees and expenses

The fees and expenses of the commission shall be borne by the parties to the dispute.

Art. 23 Right of parties to modify procedure

The parties to the dispute may by agreement applicable solely to that dispute modify any provision of this section.

Section V: Arbitration Procedure

Art. 24 Institution of proceedings

1. Any party to a dispute may submit the dispute to the arbitral procedure provided for in this section by written notification addressed to the other party or parties to the dispute. The notification shall be accompanied by a statement of the claim and the grounds on which it is based.

2. The arbitral procedure provided for in this section is not applicable, if the parties to the dispute, by arbitration agreement, have submitted the dispute to another arbitration procedure, provided that other arbitration procedure entails binding decisions.

Art. 25 List of arbitrators

1. A list of arbitrators shall be drawn up and maintained by the Secretary-General of the United Nations. Every HCP shall be entitled to nominate four arbitrators, each of whom shall be a person experienced in space law or space affairs and enjoying the highest reputation for fairness, competence and integrity. The names of the persons so nominated shall constitute the list.

2. If at any time the arbitrators nominated by a HCP in the list so constituted shall be fewer than four, that HCP shall be entitled to make further nominations as necessary.

3. The name of an arbitrator shall remain on the list until withdrawn by the HCP which made the nomination, provided that such arbitrator shall continue to serve on any arbitral tribunal to which that arbitrator has been appointed until the completion of the proceedings before that arbitral tribunal.

Art. 26 Constitution of arbitral tribunal

For the purpose of proceedings under this section, the arbitral tribunal shall, unless the parties otherwise agree, be constituted as follows:

a) Subject to subparagraph g), the arbitral tribunal shall consist of five members.

b) The party instituting the proceedings shall appoint one member to be chosen preferably from the list referred to in article 22, who may be its national. The appointment shall be included in the notification referred to in article 21.

c) The other party to the dispute shall, within 30 days or receipt of the notification referred to in article 24, appoint one member to be chosen preferably from the list, who may be its national. If the appointment is not made within that period, the party instituting the proceedings may, within two weeks of the expiration of that period, request that the appointment be made in accordance with subparagraph e).

d) The other three members shall be appointed by agreement between the parties. They shall be chosen preferably from the list and shall be nationals of third States unless the parties otherwise agree. The parties to the dispute shall appoint the President of the arbitral tribunal from among those three members. If, within 60 days of receipt of the notification referred to in article 24, the parties

are unable to reach agreement on the appointment of one or more of the members of the tribunal to be appointed by agreement, or on the appointment of the President, the remaining appointment or appointments shall be made in accordance with subparagraph e), at the request of a party to the dispute. Such request shall be made within two weeks of the expiration of the aforementioned 60-day period.

e) Unless the parties agree that any appointment under subparagraph c) and d) be made by a person or a third State chosen by the parties, the President of the International Tribunal for Space Law, and before the creation of this Tribunal, the President of the International Court of Justice, shall make the necessary appointments. If the President is unable to act under this subparagraph or is a national of one of the parties to the dispute, the appointment shall be made by the next senior member of the International Tribunal for Space Law, or the International Court of Justice respectively, who is available and is not a national of one of the parties. The appointments referred to in this subparagraph shall be made from the list referred to in article 25 within a period of 30 days of the receipt of the request and in consultation with the parties. The members so appointed shall be of different nationalities and may not be in the service of, ordinarily resident in the territory of, or nationals of, any of the parties to the dispute.

f) Any vacancy shall be filled in the manner prescribed for the initial appointment.

g) Parties in the same interest shall appoint one member of the tribunal jointly by agreement. Where there are several parties having separate interests or where there is disagreement as to whether they are of the same interest, each of them shall appoint one member of the tribunal. The number of members of the tribunal appointed separately by the parties shall always be smaller by one than the number of members of the tribunal to be appointed jointly by the parties.

h) In disputes involving more than two parties, the provisions of subparagraph a) to f) shall apply to the maximum extent possible.

Art. 27 Functions of arbitral tribunal

An arbitral tribunal constituted under article 23 shall function in accordance with this section and the other provisions of this Convention.

Art. 28 Procedure

Unless the parties to the dispute otherwise agree, that arbitral tribunal shall determine its own procedure, assuring to each party a full opportunity to be heard and to present its case.

Art. 29 Duties of parties to a dispute

The parties to the dispute shall facilitate the work of the arbitral tribunal and, in particular, in accordance with their law and using all means at their disposal, shall:

a) provide it with all relevant documents, facilities and information; and

b) enable it when necessary to call witnesses or experts and receive their evidence and to visit the localities to which the case relates.

Art. 30 Expenses

Unless the arbitral tribunal decides otherwise because of the particular circumstances of the case, the expenses of the tribunal, including the remuneration of its members, shall be borne by the parties to the dispute in equal shares.

Art. 31 Required majority for decisions

Decisions of the arbitral tribunal shall be taken by a majority vote of its members. The absence or abstention of less than half of the members shall not constitute a bar to the tribunal reaching a decision. In the event of an equality of votes, the President shall have a casting vote.

Art. 32 Default of appearance

If one of the parties to the dispute does not appear before the arbitral tribunal or fails to defend its case, the other party may request the tribunal to continue its proceedings and to make its award. Absence of a party or failure of a party to defend its case shall not constitute a bar to the proceedings. Before making its award, the arbitral tribunal must satisfy itself not only that it has jurisdiction over the dispute, but also that the claim is well founded in fact and law.

Art. 33 Award

The award of the arbitral tribunal shall be confined to the subject-matter of the dispute and state the reasons on which it is based. It shall contain the names of the members who have participated and the date of the award. Any member of the tribunal may attach a separate or dissenting opinion to the award.

Art. 34 Finality of award

The award shall be final and without appeal, unless the parties to the dispute have agreed in advance to an appellate procedure. It shall be complied with by the parties to the dispute.

Art. 35 Interpretation or implementation of award

1. Any controversy which may arise between the parties to the dispute as regards the interpretation or manner of implementation of the award may be submitted by either party for decision to the arbitral tribunal which made the award. For this purpose, any vacancy in the tribunal shall be filled in the manner provided for in the original appointments of the members of the tribunal.

2. Any such controversy may be submitted to another court or tribunal under article 6 by agreement of all the parties to the dispute.

Art. 36 Application to entities other than State Parties

The provisions of this section shall apply mutatis mutandis to any dispute involving entities other than State Parties.

Section VI: International Tribunal for Space Law

Art. 37 General provisions

1. Anytime after the deposit of the 30th instrument of ratification accession to this Convention, if at least 21 of the HCPs so agree, an International Tribunal for Space Law shall be created in conformity with this section VI.

2. The International Tribunal for Space Law is constituted and shall function in accordance with the provisions of this Convention and this section.

3. The seat of the Tribunal shall be determined at the time of its creation.

4. The Tribunal may sit and exercise its functions elsewhere whenever it considers this desirable.

Subsection 1. Organization of the Tribunal

Art. 38 Composition

1. The Tribunal shall be composed of a body of 21 independent members, elected from among persons enjoying the highest reputation for fairness and integrity and of recognized competence in the field of space law.

2. In the Tribunal as a whole the representation of the principal legal systems of the world and equitable geographical distribution shall be assured.

Art. 39 Membership

1. No two members of the Tribunal may be nationals of the same State. A person who for the purposes of membership in the Tribunal could be regarded as a national of more than one State shall be deemed to be a national of the one in which he ordinarily exercises civil and political rights.

2. There shall be no fewer than three members from each geographical group as established by the General Assembly of the United Nations.

Art. 40 Nominations and elections

1. Each HCP may nominate not more than two persons having the qualification prescribed in article 38. The members of the Tribunal shall be elected from the list of persons thus nominated.

2. At least three months before the date of the election, the Secretary-General of the United Nations in the case of the first election and the Registrar of the Tribunal in the case of subsequent elections shall address a written invitation to the HCPs to submit their nominations for members of the Tribunal within two months. He shall prepare a list in alphabetical order of all the persons thus nominated, with an indication of the HCPs which have nominated them, and shall submit it to the HCPs before the seventh day of the last month before the date of each election.

3. The first election shall be held within six months of the date of the agreement on the creation of the Tribunal according to Art. 37, paragraph 1.

4. The members of the Tribunal shall be elected by secret ballot. Elections shall be held at a meeting of the HCPs convened by the Secretary-General of the United Nations in the case of the first election and by a procedure agreed to by the HCPs in the case of of subsequent elections. Two thirds of the HCPs shall constitute a quorum at that meeting. The persons elected to the Tribunal shall be those nominees who obtain the largest number of votes and a two-third majority of the HCPs present and voting, provided that such majority includes a majority of the HCPs.

Art. 41 Term of office

1. The members of the Tribunal shall be elected for nine years and may be re-elected; provided, however, that of the members elected at the first election, the terms of seven members shall expire at the end of three years and the terms of seven more members shall expire at the end of six years.

2. The members of the Tribunal whose terms are to expire at the end of the above-mentioned initial periods of three and six years shall be chosen by lot to be drawn by the Secretary-General of the United Nations immediately after the first election.

3. The members of the Tribunal shall continue to discharge their duties until their places have been filled. Though replaced, they shall finish any proceedings which they may have begun before the date of their replacement.

4. In the case of the resignation of a member of the Tribunal, the letter of resignation shall be addressed to the President of the Tribunal. The place becomes vacant on the receipt of that letter.

Art. 42 Vacancies

1. Vacancies shall be filled by the same method as that laid down for the first election, subject to the following provisions: the Registrar shall, within one month of the occurrence of the vacancy, proceed to issue the invitations provided for in article 40, and the date of the election shall be fixed by the President of the Tribunal after consultation with the HCPs.

2. A member of the Tribunal elected to replace a member whose term of office has not expired shall hold office for the remainder of his predecessor's term.

Art. 43 Incompatible activities

1. No member of the Tribunal may exercise any political or administrative function, or associate actively with or be finally interested in any of the operations of any enterprise concerned with space activities.

2. No member of the Tribunal may act as agent, counsel or advocate in any case.

3. Any doubt on these points shall be resolved by decision of the majority of the other members of the Tribunal present.

Art. 44 Conditions relating to participation of members in a particular case

1. No member of the Tribunal may participate in the decision of any case in which he has previously taken part as agent, counsel or advocate for one of the parties, or as a member of a national or international court of tribunal, or in any other capacity.

2. If, for some special reason, a member of the Tribunal considers that he should not take part in the decision of a particular case, he shall so inform the President of the Tribunal.

3. If the President considers that for some special reason one of the members of the Tribunal should not sit in a particular case, he shall give him notice accordingly.

4. Any doubt on these points shall be resolved by decision of the majority of the other members of the Tribunal present.

Art. 45 Consequences of ceasing to fulfil required conditions

If, in the unanimous opinion of the other members of the Tribunal, a member has ceased to fulfill the requested conditions, the President of the Tribunal shall declare the seat vacant.

Art. 46 Privileges and immunities

The members of the Tribunal, when engaged on the business of the Tribunal, shall enjoy diplomatic privileges and immunities.

Art. 47 Solemn declaration by members

Every member of the Tribunal shall, before taking up his duties, make a solemn declaration in open session that he will exercise his powers impartially and conscientiously.

Art. 48 President, Vice-President and Registrar

1. The Tribunal shall elect its President and Vice-President for three years; they may be re-elected.

2. The Tribunal shall appoint its Registrar and may provide for the appointment of such other officers as may be necessary.

3. The President and the Registrar shall reside at the seat of the Tribunal.

Art. 49 Quorum

1. All available members of the Tribunal shall sit; a quorum of 11 elected members shall be required to constitute the Tribunal.

2. Subject to article 52, the Tribunal shall determine which members are available to constitute the Tribunal for the consideration of a particular dispute, having regard to the effective functioning of the chambers as provided for in article 50.

3. All disputes and applications submitted to the Tribunal shall be heard and determined by the Tribunal, unless the parties request that it shall be dealt with in accordance with article 50.

Art. 50 Special chambers

1. The Tribunal may form such chambers, composed of three or more of its elected members, as it considers necessary to dealing with particular categories of disputes.

2. The Tribunal shall form a chamber for dealing with a particular dispute submitted to it if the parties so request. The composition of such a chamber shall be determined by the Tribunal with the approval of the parties.

3. With a view to the speedy dispatch of business, the Tribunal shall form annually a chamber composed of five of its elected members which may hear and determine disputes by summary procedure. Two alternative members shall be selected for the purpose of replacing members who are unable to participate in a particular proceeding.

4. Disputes shall be heard and determined by the chambers provided for in this article if the parties so request.

5. A judgement given by any of the chambers provided for in this article shall be considered as rendered by the Tribunal.

Art. 51 Rules of the Tribunal

The Tribunal shall frame rules for carrying out its functions. In particular it shall lay down rules of procedure.

Art. 52 Nationality of members

1. Members of the Tribunal of the nationality of any of the parties to a dispute shall retain their right to participate as members of the Tribunal.

2. If the Tribunal, when hearing a dispute, includes upon the bench a member of the nationality of one of the parties, any other party may choose a person to participate as a member of the Tribunal.

3. If the Tribunal, when hearing a dispute, does not include upon the bench a member of the nationality of the parties, each of those parties may choose a person to participate as a member of the Tribunal.

4. This article applies to the chambers referred to in article 50. In such cases, the President, in consultation with the parties, shall request specified members of the Tribunal forming the chamber, as many as necessary, to give place to the members of the Tribunal of the nationality of the parties concerned, and, failing such, or if they are unable to be present, to the members specially chosen by the parties.

5. Should there be several parties in the same interest, they shall, for the purpose of the preceding provisions, be considered as one party only. Any doubt on this point shall be settled by the decision of the Tribunal.

6. Members chosen in accordance with paragraph 2, 3 and 4 shall fulfill the conditions required by articles 38, 44 and 47. They shall participate in the decision on terms of complete equality with their colleagues.

Art. 53 Remuneration of members

1. Each elected member of the Tribunal shall receive an annual allowance and, for each day on which he exercises his functions, a special allowance, provided that in any year the total sum payable to any member as special allowance shall not exceed the amount of the annual allowance.

2. The President shall receive a special annual allowance.

3. The Vice-President shall receive a special allowance for each day on which he acts as President.

4. The members chosen under article 52, other than elected members of the Tribunal, shall receive compensation for each day on which they exercise their functions.

5. The salaries, allowances and compensations shall be determined from time to time at meetings of the HCPs, taking into account the work load of the Tribunal. They may not be decreased during the term of office.

6. The salary of the Registrar shall be determined at meetings of the HCPs, on the proposal of the Tribunal.

7. Regulations adopted at meetings of the HCPs shall determine the conditions under which retirement pensions may be given to members of the Tribunal and to the Registrar, and the conditions under which members of the Tribunal and Registrar shall have their traveling expenses refunded.

8. The salaries, allowances, and compensation shall be free of all taxation.

Art. 54 Expenses of the Tribunal

1. The expenses of the Tribunal shall be borne by the HCPs on such terms and in such a manner as shall be decided at meetings of the HCPs.

2. When an entity other than a HCP is a party to a case submitted to it, the Tribunal shall fix the amount which that party is to contribute toward the expenses of the Tribunal.

Subsection 2. Competence

Art. 55 Jurisdiction

The jurisdiction of the Tribunal comprises all disputes and all applications submitted to it in accordance with this Convention and all matters specifically provided for in any other agreement which confers jurisdiction on the Tribunal.

Art. 56 Reference of disputes subject to other agreements

If all the parties to a treaty or convention already in force and concerning the subject-matter covered by this Convention so agree, any disputes concerning the interpretation or application of such treaty or convention may, in accordance with such agreement, be submitted to the Tribunal.

Art. 57 Applicable law

The Tribunal shall decide all disputes and applications in accordance with article 11.

Subsection 3. Procedure

Art. 58 Institution of proceedings

1. Disputes are submitted to the Tribunal, as the case may be, either by notification of a special agreement or by written application, addressed to the Registrar. In either case, the subject of the dispute and the parties shall be indicated.

2. The Registrar shall forthwith notify the special agreement or the application to all concerned.

3. The Registrar shall also notify all NCPs.

Art. 59 Provisional measures

1. In accordance with article 9, the Tribunal and its Chambers shall have the power to prescribe provisional measures.

2. If the Tribunal is not in session or a sufficient number of members is not available to constitute a quorum, the provisional measures shall be prescribed by the chamber of summary procedure formed under Art. 50, paragraph 3. Notwithstanding Art. 50, paragraph 4, such provisional measures may be adopted at the request of any party to the dispute. They shall be subject to review and revision by the Tribunal.

Art. 60 Hearing

1. The hearing shall be under the control of the President or, if he is unable to preside, of the Vice-President. If neither is able to preside, the senior judge present of the Tribunal shall preside.

2. The hearing shall be public, unless the Tribunal decides otherwise or unless the parties demand that the public not be admitted.

Art. 61 Conduct of case

The Tribunal shall make orders for the conduct of the case, decide the form and time in which each party must conclude its arguments, and make all arrangements connected with the taking of evidence.

Art. 62 Default

When one of the parties does not appear before the Tribunal or fails to defend its case, the other party may request the Tribunal to continue the proceedings and make its decision. Absence of a party or failure of a party to defend its case shall not constitute a bar to the proceedings. Before making its decision, the Tribunal must satisfy itself not only that it has jurisdiction over the dispute, but also that the claim is well founded in fact and law.

Art. 63 Majority for decision

1. All questions shall be decided by a majority of the members of the Tribunal who are present.

2. In the event of an equality of votes, the President or the member of the Tribunal who acts in his place shall have a casting vote.

Art. 64 Judgement

1. The judgement shall state the reasons on which it is based.

2. It shall contain the names of the members of the Tribunal who have taken part in the decision.

3. If the judgement does not represent in whole or in part the unanimous opinion of the members of the Tribunal, any member shall be entitled to deliver a separate opinion.

4. The judgement shall be signed by the President and by the Registrar. It shall be read in open courts, due notice having been given to the parties to the dispute.

Art. 65 Request to intervene

1. Should a HCP consider that it has an interest of a legal nature which may be affected by the decision in any dispute, it may submit a request to the Tribunal to be permitted to intervene.

2. It shall be for the Tribunal to decide upon this request.

3. If a request to intervene is granted, the decision of the Tribunal in respect of the dispute shall be binding upon the intervening HCP insofar as it relates to matters in respect of which that HCP intervened.

Art. 66 Right to intervene in cases of interpretation or application

1. Whenever the interpretation or application of this Convention is in question, the Registrar shall notify all HCPs forthwith.

2. Whenever pursuant to article 55 or 56 the interpretation or application of an international agreement is in question, the Registrar shall notify all the parties to the agreement.

3. Every party referred to in paragraph 1 and 2 has the right to intervene in the proceedings; if it uses this right, the interpretation given by the judgement will be equally binding upon it.

Art. 67 Finality and binding force of decisions

1. The decision of the Tribunal is final and shall be complied with by all the parties to the dispute.

2. The decision shall have no binding force except between the parties in respect of that particular dispute.

3. In the event of dispute as to the meaning or scope of the decision, the Tribunal shall construe it upon the request of any party.

Art. 68 Costs

Unless otherwise decided by the Tribunal, each party shall bear its own costs.

Section VII. Final Provisions

Art. 69 Signature

1. This Convention shall be open for signature by:

a) all States;
b) Namibia, represented by the United Nations Council for Namibia;
c) all self-governing associated States which have chosen that status in an act of self-determination supervised and approved by the United Nations in accordance with General Assembly resolution 1514 (XV) and which have competence over the matters governed by this Convention, including the competence to enter into treaties in respect of those matters;
d) all self-governing associated States which, in accordance with their respective instruments of association, have competence over the matters governed by this Convention, including the competence to enter into treaties in respect of those matters;

e) all territories which enjoy full internal self-government, recognized as such by the United Nations, but have not attained full independence in accordance with General Assembly resolution 1514 (XV) and which have competence over the matters governed by this Convention, including the competence to enter into treaties in respect of those matters;

f) international organizations

2. This Convention shall remain open for signature at the United Nations Headquarters in New York.

Art. 70 Ratification and formal confirmation

This Convention is subject to ratification by States and other entities referred to in Art. 69, paragraph 1 b), c), d), and e), and to formal confirmation by the entities referred to in Art. 69, paragraph 1 f). The instruments of ratification and of formal confirmation shall be deposited with the Secretary-General of the United Nations.

Art. 71 Accession

This Convention shall remain open for accession by the States and the other entities referred to in article 69. The instruments of accession shall be deposited with the Secretary-General of the United Nations.

Art. 72 Entry into force

1. This convention shall enter into force 12 months after the date of deposit of the 30th instrument of ratification or accession.

2. For each State ratifying or acceding to this Convention after the deposit of the 30th instrument of ratification or accession, the Convention shall enter into force on the thirtieth day following the deposit of its instrument of ratification or accession, subject to paragraph 1.

Art. 73 Relation to other conventions and international agreements

1. This Convention shall not alter the rights and obligations of HCPs which arise from other agreements compatible with this Convention and which do not affect the enjoyment by other HCPs of their rights or the performance of their obligations under this Convention.

2. Two or more HCPs may conclude agreements modifying or suspending the operation of provisions of this Convention, applicable solely to the relations between them, provided that such agreements do not relate to a provision derogation which is incompatible with the effective execution of the object and purposes of this Convention, and provided further that such agreements shall not affect the application of the basic principles embodied herein, and

that the provisions of such agreements do not affect the enjoyment by other HCPs of their rights or the performance of their obligations under this Convention.

3. HCPs intending to conclude an agreement referred to in paragraph 2 shall notify the other HCPs through the depositary of this Convention of their intention to conclude the agreement and of the modification or suspension for which it provides.

4. This article does not affect international agreements expressly permitted or preserved by other articles of this Convention.

Art. 74 Denunciation

1. A HCP may, by written notification addressed to the Secretary-General of the United Nations, denounce this Convention and may indicate its reasons. Failure to indicate reasons shall not affect the validity of the denunciation. The denunciation shall take effect one year after the date of receipt of the notification, unless the notification specifies a later date.

2. A State shall not be discharged by reason of the denunciation from the financial and contractual obligations which accrued while it was a Party to this Convention, nor shall the denunciation affect any right, obligation or legal situation of that State created through the execution of this Conventions prior to its termination for that State.

3. The denunciation shall not in any way affect the duty of any HCP to fulfill any obligation embodied in this Convention to which it would be subject under international law independently of this Convention.

Art. 75 Depositary

1. The Secretary-General of the United Nations shall be the depositary of this Convention and amendments thereto.

2. In addition to his functions as depositary, the Secretary-General shall:

   a) report to all HCPs and competent international organizations on issues of a general nature that have arisen with respect to this Convention;

   b) notify HCPs of agreements in accordance with Art. 73, paragraph 4;

   c) convene necessary meetings of HCPs in accordance with this Convention.